

HOUSE No. 5364

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act further amending Holyoke's residency requirement.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>4/2/2026</i>

HOUSE No. 5364

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 5364) of Patricia A. Duffy (with the approval of the mayor and city council) that the city of Holyoke be authorized to further regulate residency requirements in said city. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act further amending Holyoke's residency requirement.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 46 of the Holyoke City Charter shall be amended by deleting the
2 entire section and inserting the following:

3 “Sec. 46: Officer ceasing to be a resident; conviction of crime.

4 Any elected office established by or under this act shall become vacant if the incumbent
5 ceases to be a resident of the city. The conviction of the incumbent in any elected or appointed
6 office established by or under this act of a crime punishable by imprisonment shall operate to
7 create a vacancy in the office held by such incumbent.

8 SECTION 2: The General Court may make clerical or editorial changes of form only to
9 the bill, unless the Mayor and City Council approve amendments before enactment by the
10 General Court. The Mayor and City Council are hereby authorized to approve amendments
11 which shall be within the scope of the general public objectives of this petition.

SECTION 3: This act shall take effect immediately upon passage.